

		The Court declines to consider any argument in favor of reconsideration of its finding that the challenged actions are quasi-legislative and extra-record evidence is not admissible. Any issues regarding the certified administrative record and what should be included therein may be addressed by way of Petitioner's Motion to Establish the Proper Scope and Content of the Administrative Record or, In the Alternative, to Augment the Record. In light of the above, the Motion for Reconsideration is DENIED. <i>Opposing party to give notice.</i>
105	Rutner vs. OneSmile Intermediate, LLC, 26-01555258	Respondent OneSmile Intermediate, LLC ("Respondent") demurs to the Petition for Writ of Mandate filed by petitioner Robert D. Rutner ("Petitioner"). First, Respondent argues the Petition is time-barred because it seeks to challenge a decision made by Respondent on October 5, 2018. This is a mischaracterization of the Petition. Petitioner seeks to compel Respondent to permit the inspection and copying of its books and records. The Petition alleges that Petitioner, as a member of Respondent, made multiple demands beginning in the spring of 2025, all of which were denied. While the Petition alleges that Respondent made an October 5, 2018 repurchase attempt, the Petition itself arises out of Respondent's refusal to provide access to records rather than any decision made on October 5, 2018. Thus, Respondent's statute of limitations argument fails. Next, Respondent argues Petitioner has no standing to seek access to the books and records because he is not a member of the limited liability company, as demonstrated by the exhibits to the Petition. Under the Contribution and Exchange Agreement attached to the Petition as Exhibit A, Respondent had the right to purchase units held by Petitioner under certain circumstances, including cause. Exhibit B to the Petition is an October 5, 2018 letter to Petitioner which states that Respondent is exercising its option to purchase for cause. Enclosed with the letter was a check for an aggregate purchase price of \$318,148.00. While these exhibits show

that Respondent attempted to exercise a contractual repurchase right, Petitioner alleges that he did not accept the check sent by Respondent and the attempted repurchase was never consummated. Petitioner's allegations and the attached exhibits are not inherently contradictory and the allegations in the Petition must be accepted as true on a demurrer. Thus, Respondent's standing argument fails at this stage.

Lastly, Respondent argues Petitioner has not shown any irreparable harm will be suffered of a writ is not granted, that Respondent has any clear and present ministerial duty, or that Petitioner has a clear and present beneficial right to performance of any duty.

Petitioner alleges that his demands for records were made to safeguard his interests as a member of Respondent and ensure the fair and responsible management of the company and he must be provided with the information to analyze Respondent's financial transactions and investigate potential conflicts of interest or breaches of fiduciary duty.

Petitioner alleges that he has made proper and lawful demands for the inspection and copying of Respondent's records pursuant to his rights as a member. Respondent has a duty under Corporations Code section 17704.10 to deliver the requested records for inspection and copying. As Petitioner points out, monetary damages for Respondent's failure to comply with his demands would not provide an adequate remedy at law as it would not grant him the access to the records to which he is allegedly entitled. Further, section 17704.10(f) grants the Court authority to issue a writ order along with any other remedies. (*Perry v. Stuart* (2025) 111 Cal.App.5th 472, 499.) The Court finds that Petitioner's allegations are sufficient to support his Petition for writ of mandate.

In light of the above, the Demurrer is **OVERRULED**. Respondent to file an answer to the Petition within 20 days.

The Case Management Conference is continued to December 3, 2026 at 1:30 p.m.

Petitioner to give notice.

107	KMJ Corbin & Company LLP vs. Blithe, 24-01412778	Defendant, Richard Blithe (“Defendant” or “Blithe”), moves for judgment on the pleadings as to the second cause of action for breach of contract in the Verified Complaint of Plaintiff KMJ Corbin & Company LLP (“Plaintiff” or “KMJ”). Defendant contends that the second cause of action is based on alleged noncompete clauses that are unenforceable under Business & Professions Code sections 16600 and 16601, such that the motion must be granted, without leave to amend. KMJ contends that the motion is improper as it attacks only the non-competition and non-solicitation covenants and not the other breaches of contractual duties such that it impermissibly attacks a portion of a cause of action; that Section 16601 applies on the face of the pleadings as this case involves a sale of an entire business and its goodwill, not a partial sale, and not an employment noncompete imposed as a condition of hire; that this is not the "employment context" that Section 16600(b)(1) addresses; that the controlling authority is <i>Alliant Ins. Services, Inc. v. Gaddy</i> (2008) 159 Cal.App.4th 1292, which forecloses Defendant’s argument that the covenant cannot reach post-sale and employment-derived clients; that the motion’s duration and geography arguments raise fact questions that cannot be resolved on the pleadings; and that Section 16601 contains no durational limit. Lastly, KMJ contends that even accepting Defendant’s premise that categories (ii) and (iii) are overbroad, judgment on the pleadings would still be improper because category (i), the Client List Blithe actually sold, is within Section 16601’s core, and that the parties expressly contracted for reformation and severance, such that, at minimum, the covenant is enforceable as to the Client List Blithe sold, and the second cause of action states a claim. Defendant moves for judgment on the pleadings pursuant to Code of Civil Procedure sections 438 and 439, and common law. A statutory motion for judgment on the pleadings may be made at any time except not within 30 days before trial, unless the court otherwise permits. (Code Civ. Proc. § 438(e).) However, a nonstatutory motion for judgment on the pleadings may be brought at any time. (<i>Stoops v. Abbassi</i> (2002) 100 Cal. App. 4th 644, 650.)
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